

# FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

**DOCKET NO. 23-01**

Served: June 6, 2024

---

**ORDER OF:** Alex M. CHINTELLA, *Administrative Law Judge*.

---

**NOTICE OF FILING OF RESPONSE OF SUPREME COURT OF SINGAPORE TO JANUARY 26, 2024  
REQUEST FOR ASSISTANCE PURSUANT TO HAGUE CONVENTION**

On January 26, 2024, I issued an order granting Respondent's request seeking issuance of two Letters of Request for International Assistance Pursuant to the Hague Convention of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters. One of the requests was directed to the Supreme Court of Singapore. The Supreme Court of Singapore's response, received June 6, 2024, is attached.

ALEX CHINTELLA

Digitally signed by  
ALEX CHINTELLA  
Date: 2024.06.06  
11:41:16 -04'00'

---

Alex M. Chintella  
Administrative Law Judge



SUPREME COURT OF SINGAPORE  
LEGAL REGISTRY

Our Ref: TEA 3/2024/MN

29 April 2024

The Federal Maritime Commission  
The Honorable Alex M. Chintella  
Administrative Law Judge  
800 North Capitol Street, N.W  
Washington, D.C. 20573

**REQUEST, PURSUANT TO THE HAGUE CONVENTION OF 18 MARCH 1970 ON THE TAKING OF EVIDENCE ABROAD IN CIVIL OR COMMERCIAL MATTERS, FOR INTERNATIONAL JUDICIAL ASSISTANCE IN OBTAINING EVIDENCE FROM SAMSUNG SDS ASIA PACIFIC PTE LTD**

Docket No. 23-01

We refer to the letter of request for international judicial assistance ("**Request Letter**") from the Office of Administrative Law Judges Federal Maritime Commission (the "**Foreign Court**"), which we forwarded to the Attorney-General's Chambers of Singapore ("**AGC**") on 3 April 2024 pursuant to Order 55, Rule 3(b) of the Rules of Court 2021 ("**ROC 2021**"). Unless otherwise stated, references in this letter to "**Article**" mean an article in the Hague Convention of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters ("**Convention**").

2. The Foreign Court has requested certain information from Samsung SDS Asia Pacific Pte Ltd ("**Samsung SDS**") in connection with proceedings before it.
3. The brief facts of the proceedings before the Foreign Court (the "**Foreign Proceedings**") are as follows:
  - (a) Plaintiff: Samsung Electronics America, Inc.
  - (b) Defendant: SM Line Corporation
  - (c) Nature of proceedings: No information provided in the Request Letter.<sup>1</sup>
  - (d) Evidence required from Samsung SDS: The Request Letter sets out a list of 19 categories of documents to be produced by Samsung SDS (the "**Documents**"). This list, entitled Schedule A, is obtained from a subpoena issued by the Foreign Court on behalf of the Defendant against Samsung SDS, a non-party to the Foreign Proceedings.
4. Please be informed that AGC is unable to accede to the request for the reasons set out below.
5. First, the Request Letter does not comply with Article 3(c) of the Convention. Article 3(c) provides that the Request Letter shall specify "*the nature of the proceedings for which the evidence is required, giving all necessary information in regard thereto*". This includes: (a) details about the Foreign Proceedings, (b) the relationship between Samsung SDS, the non-party from whom evidence is sought, and the parties to the Foreign Proceedings, and (c) information on how the requested evidence is relevant to the Foreign Proceedings.

<sup>1</sup> The subpoena attached to the Request Letter refers to "SEA's Complaint" but does not describe this complaint.

6. Article 3(c) of the Convention is not satisfied as the Request Letter does not:
- (a) provide information about the Foreign Proceedings, including the cause(s) of action and the circumstances in which this claim has arisen;
  - (b) explain how Samsung SDS is related to the parties in the proceedings; and
  - (c) state the relevance of the evidence required from Samsung SDS to the Foreign Proceedings.
7. Second, Article 23 of the Convention provides that "[a] Contracting State may ... declare that it will not execute Letters of Request issued for the purpose of obtaining pre-trial discovery of documents." Singapore has made such a declaration, and has also declared that we understand "Letters of Request issued for the purpose of obtaining pre-trial discovery of documents" as including any letter of request which requires a person:
- (a) to state what documents relevant to the proceedings to which the letter of request relates are, or have been, in his possession, custody or power; or (b) to produce any documents other than particular documents specified in the letter of request as being documents appearing to the requested court to be, or to be likely to be, in his possession, custody or power.
8. Accordingly, letters of request are required to specify the "*particular documents*" to be produced and "*particular documents*" has been interpreted to mean: (i) individual documents separately described (as opposed to a class of documents); and (ii) actual documents which are shown by evidence to exist or have existed (as opposed to conjectural documents).
9. The Request Letter does not identify any particular documents; the Documents are all classes of documents described in broad terms. For example, it seeks "*All documents and correspondence exchanged on its own, between, or amongst [Samsung SDS] and Logitech.....including but not limited to service contracts, service agreements, Requests for Proposal, quotes, letters of intent, delivery orders, work orders, instructions, requests, invoices, payment records, receipts, and any communications involving securing, providing, managing, handling, or dealing with any trucking service providers, truck dispatching service providers, truck operators, truck driver, rail terminals, sea/marine terminals, warehouses, container yards, depot yards, or any other similar shipping and logistics service providers.*" It is unclear if all the Documents sought from Samsung SDS are actual documents shown by evidence to exist or have existed, or if they are conjectural documents.
10. As AGC is unable to accede to this request without further information set out above, the Defendant may consider instructing Singapore counsel to file the necessary applications under Order 55 Rule 2 of the ROC 2021 to obtain the evidence sought. Instructed Singapore counsel would be familiar with the facts of the Foreign Proceedings and the relevance of the information/documents sought to the Foreign Proceedings and would be better placed to address the Singapore Court compared to State Counsel from AGC.
11. If the Defendant prefers not to engage Singapore counsel to seek the required evidence and the Foreign Court wishes to supplement its request with more information, the Foreign Court should also provide AGC with the following for the purposes of making the relevant court application in connection with the request (pursuant to Article 26 of the Convention):
- (a) Upfront payment of the estimated expenses and disbursements to be incurred. This sum is estimated to be S\$3,320 ("Sum"). Payment of the Sum can be made in the form of a Cashier's Order to the "Attorney-General's Chambers" sent to 1 Upper Pickering Street, Singapore 058288. The correspondence enclosing the Cashier's Order should cite the reference number AG/CIV/DM/SUPC/2024/7.
  - (b) A written undertaking that the Foreign Court will pay any other fees and costs (in excess of the Sum) related to the execution of the Foreign Court's Request, including the witness' costs of attendance in court (if any).

12. Finally, AGC also notes that the Request Letter is not set out in the model form used for the Convention. The Foreign Court acknowledges that the model form has not been utilised, noting that while parties have been encouraged to use the model form, the Request Letter appears to contain the necessary information pursuant to Article 3 of the Convention. While the model form is not mandatory, AGC notes that the Special Commission of the Hague Conference on Private International Law (HCCH) set up to review the Convention (the "**Special Commission**") has strongly recommended that the model form is used to enhance the practical operation of the Convention.<sup>2</sup> In line with the Special Commission's recommendation, AGC would also urge the use of the model form for the request.

Yours faithfully,



MS GAN KAM YUIN  
ASSISTANT REGISTRAR  
SUPREME COURT, SINGAPORE

Cc: Permanent Secretary (Ministry of Law)  
Luqman Hakim

The Honourable the Attorney General  
Attorney-General's Chambers  
1 Upper Pickering Street  
Singapore 058288  
Your ref: AG/CIV/DM/SUPC/2024/7  
Attn: Vanita Jegathesan (Deputy Senior State Counsel)  
Civil Division

Wook Chung  
Montgomery McCracken Walker & Rhoads LLP  
437 Madison Avenue  
New York, New York 10022

---

<sup>2</sup> Conclusions and Recommendations of the Special Commission on the Practical Operation of the Hague Apostille, Service, Taking of Evidence and Access to Justice Conventions (Feb 2009), Note 54